

Mohan Bajpai v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 April 2012 · Writ - C No. 13606 of 2012 · **Writ disposed; file objections; recovery stayed pending decision**

HEADNOTE

Service of a provisional assessment by ordinary post cannot be presumed sufficient, as that mode does not conform to Clause 9.3 of the U.P. Electricity Supply Code, 2005. Where a copy has nonetheless been served with the counter affidavit, the consumer is to file objections within fifteen days; those objections are to be decided in accordance with law within a month, and the licensee may not recover the assessed amount until then.

FACTUAL SUMMARY

Mohan Bajpai petitioned the Allahabad High Court against a provisional electricity assessment issued by the distribution licensee. Over several listings the Court asked how the assessment had been served. Counsel for the licensee stated that a copy had been sent by ordinary post; a copy was also filed with the counter affidavit and served on the petitioner's counsel. The Division Bench then disposed of the writ by putting the petitioner to objections against the assessment.

REUSABLE CONSTRUCTIONS

1. Service of a provisional assessment by ordinary post cannot be presumed sufficient, because that mode does not conform to Clause 9.3 of the U.P. Electricity Supply Code, 2005. ¶ 7
2. If a copy of the provisional assessment is later served in the writ (as with the counter affidavit), defective postal service need not vacate the assessment; the consumer may be directed to file objections, with recovery stayed until they are decided. ¶ 7

HOLDING-UNITS

HOLDING-UNIT · UP-2005::9.3

mode of service of provisional assessment

HOLDING

Service of documents sent by ordinary post cannot be presumed sufficient, as it does not conform to Clause 9.3 of the U.P. Electricity Supply Code, 2005. A copy of the provisional assessment having been served with the counter affidavit, the writ was disposed of by directing the petitioner to file objections within fifteen days, to be decided in accordance with law within a month, with no recovery until those objections are decided. ¶ 7

PRINCIPLE TAGS

clause-9.3-service-mode-prerequisite-to-treating-assessment-final Ordinary post was held not to conform to Clause 9.3, so service of the provisional assessment could not be presumed. After actual service via the counter affidavit, the consumer was put to objections and recovery was stayed until those objections were decided. ¶ 7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT

Quantum and liability were left to objections, to be decided in accordance with law. ¶ 7

